

24STCV33997 24STCV33997

County: los-angeles

Division: Civil Law and Motion

Department: 407

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Case Number: 24STCV33997 Hearing Date: September 16, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: September 16, 2026 TRIAL

DATE: December 20, 2027

CASE: Jane Doe K.P., et

al. v. Los Angeles Unified School District, et al.

CASE NO.: 24STCV33997

MOTION

TO BE RELIEVED AS COUNSEL

I. BACKGROUND

On July 28, 2026, Cindy K. Suh of Slater, Slater, Schulman, LLP, counsel for Plaintiff, Jane Doe J.A., filed this Motion to be Relieved As Counsel.¿

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¿ The motion
is unopposed.¿

II. LEGAL STANDARD

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California Rules of Court, rule 3.1362 (Motion to Be Relieved as Counsel) requires (1) notice of motion and motion to be directed to the client (made on the Notice of Motion and Motion to be Relieved as Counsel—Civil form (MC-051)); (2) a declaration stating in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1) (made on the Declaration in Support of Attorney's Motion to Be Relieved as Counsel—Civil form (MC-052)); (3) service of the notice of motion and motion and declaration on all other parties who have appeared in the case; and (4) the proposed order relieving counsel (prepared on the Order Granting Attorney's Motion to Be Relieved as Counsel—Civil form (MC-053)).¿¿¿¿

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The court has discretion to allow an attorney to withdraw, and such a motion should be granted provided that there is no prejudice to the client, and it does not disrupt the orderly process of justice.¿ (See Ramirez v. Sturdevant (1994) 21 Cal.App.4th 904, 915.)¿¿¿¿¿¿

III. DISCUSSION

Plaintiff's counsel seeks to be relieved as counsel of record for the following reasons: "It has become unreasonably difficult for this office to carry out Plaintiff's representation effectively under CRPC 3-700(C)(1)(d). Additionally, there has been a breakdown in the attorney-client relationship (Estate of Falco v. Decker (1987) 188 Cal.App.3d 1004,1014.)." (Form MC-052.)

Absent a showing of resulting prejudice, an attorney's request for withdrawal should be granted.¿ (People v. Prince (1968) 268 Cal.App.2d 398, 406.)¿¿¿¿

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Upon review, the court finds the Motion complies with California Rules of Court, rule 3.1362.¿

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IV. CONCLUSION¿

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Accordingly, the unopposed Motion to Be Relieved as Counsel
is GRANTED and effective upon the filing of the proof of service of this signed
order upon Plaintiff. ¿¿¿

Counsel to give notice.¿

Dated: September 16,
2026

Brock T. Hammond

Judge of the
Superior Court